
Appeal Decision

Site visit made on 11 August 2026

by D Harris-Watkins BA(Hons) PgD MRICS

an Inspector appointed by the Secretary of State

Decision date: 22 September 2026

Appeal Ref: 6010826

Land at Main Street, Great Brington, Northampton NN7 4JA

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Elias Bell against the decision of West Northamptonshire Council.
 - The application Ref is 2025/4825/FULL.
 - The development proposed is new dwelling.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. Prior to submission of the application the appellant sought pre-application advice from the Council. The appellant has stated that elements of the Council's reasoning for refusing the application were not raised within the pre-application advice given. I have not been provided with the pre-application advice given by the Council; however, I note that it was for a different design than that which is before me now. In any event the Council's formal decision was to refuse the application. I have determined the appeal on its own merits based on the evidence before me.
3. On 17 August 2026, a revised National Planning Policy Framework (the Framework) was published. The main parties have been invited to comment on the relevance of the Framework to the appeal, I am therefore satisfied they have not been prejudiced. Consideration has been given to those comments received in reaching the appeal decision.

Main Issues

4. The main issues are:
 - whether the site is a suitable location for the proposed development, with regard to the relevant development plan policies; and,
 - the effect of the proposed development on the character and appearance of the area.

Reasons

Location of Development

5. The Council's spatial strategy for rural areas is based upon the rural settlement hierarchy outlined in policy R1 of the West Northamptonshire Joint Core Strategy Local Plan (Part 1) 2014 (the LP), aimed at securing development in the most

sustainable locations. Great Brington falls within 'Other Villages' which is the third tier of the hierarchy. Criterion A of Policy RA3 of the Settlements and Countryside Local Plan (Part 2) For Daventry District 2020 (the LP2), states that development at Other Villages will be located within the confines of the village.

6. The appeal site is noted as a 'valued open green space' within the Bringtons and Nobottle Village Design Statement 2018 (the VDS). Agricultural fields and the wider open countryside are located to the west of the appeal site. Kimbell's Field located to the north of the site is an open grass field, used as a community open space. Winterell's (the neighbouring dwelling to the east) is set away from its side boundary with the appeal site. Therefore, despite residential development being located to the south and east, the site is predominantly surrounded by open space and not built form. Due to these factors and the undeveloped nature of the appeal site means that it visually appears as part of the countryside.
7. Furthermore, Table 3 of the LP2 outlines what is considered within the village confines. Though the site's boundaries are contiguous with the neighbouring dwellings and Kimbell's Field, it does not comprise buildings or curtilages that are visually separate from the open countryside that are clearly part of a coherent network of buildings that form the village. The appeal site also does not have planning permission for housing or a community use. Table 3 of the LP2 also states that gardens or areas of open space which relate to the open countryside taking into account the character and appearance of the garden and the surrounding area are considered outside the confines of the village. Therefore, in consideration of Table 3 of the LP2 the appeal site is not located within the confines of the village.
8. Development outside the confines is strictly controlled in accordance with criterion B of policy RA3 of the LP2, policy RA6 of the LP2, policy R1 of the LP, and policy HS24 from the VDS. None of the types of development within these policies which could be acceptable within the open countryside apply to the current proposal. Consequently, the proposed development would be harmful in that the spatial strategy for housing would be undermined.
9. For the reasons above, the site is not in a suitable location for the proposed development with regard to the relevant development plan policies. The proposal conflicts with the aims of RA3 and RA6 of the LP2, as well as R1 of the LP, which seek to control the location of development and protect the countryside.

Character and Appearance

10. The appeal site comprises an undeveloped parcel of land on the edge of the village with a wooden stable. The nearest residential properties are two stories and are set back from the road and have a variance of materials and style of architectural design. The siting of the dwellings and the undeveloped surrounding rural landscape create a verdant and spacious feel to the entrance to the village.
11. The appeal site is bordered by a combination of mature hedgerows, trees and fencing. Though the site's southern and western boundaries comprise mature vegetation providing a degree of screening from Main Street and the Public Right of Way within the neighbouring agricultural field, this would be reduced in the winter months when the deciduous vegetation are not in leaf. The northern boundary comprises a few spaced out trees and fencing, resulting in the site being prominently visible from Kimbell's Field. The site's undeveloped nature and

surrounding mature vegetation contribute positively to the verdant approach to the village and the character and appearance of the area.

12. The proposal is to construct a large two storey dwelling on the appeal site, which has a broadly L shaped layout. The building would be located close to the boundary with Main Street. Due to the siting, massing and footprint of the development, this would result in the building being highly prominent from Main Street and create a sense of enclosure to the streetscape. This would not reflect the defined urban grain of development in the immediate area and would adversely affect the character of the approach into the village.
13. Though the appeal site is not within any views identified within the Great Brington Conservation Area Appraisal and Management Plan 2021, the site is within a significant view noted within the VDS. Due to the width and massing of the building it would also be highly visible from the Kimbell's Field and the significant view. The recommended tree works on the northern boundary would increase the prominence of the development from this direction, exacerbating the harm caused by the proposal. Though the appellant has stated they would carry out additional tree planting on this boundary, due to the massing and siting of the building, I am not satisfied that conditions in relating to a landscaping scheme would sufficiently mitigate the harm identified.
14. While the proposed building shares a similar footprint, materials, and architectural style with other properties in the village, these factors do not sufficiently mitigate the harm caused by its massing and physical placement on the appeal site. The proposal would result in the introduction of a significant amount of built form in a prominent location that forms a key part of the verdant entrance to the village, the domestication and loss of openness of the site would harmfully reduce the sites contribution to the character and appearance of the area.
15. For the reasons above, the proposed development would have a significant harmful effect on the character and appearance of the area. The proposal would conflict with policy RA3 and ENV10 of the LP2 as well as R1 of the LP, which seek amongst other things to protect the form, character and setting of the village, that developments scale, density, massing, height and layout combine to ensure development blends well with its surroundings.

Other Considerations

16. Local Planning Authorities are required under the Self-Build and Custom Housebuilding Act 2015 (as amended) to give permission for enough serviced plots of land to meet the demand for self-build and custom housebuilding in the authority's area in respect of each based period. However, I have not been provided with any details in relation to the Council's demand and supply to determine if the proposal was constructed as a self-build how much of a benefit this would comprise. I have also not been provided with any means of securing the property as a self-build. Therefore, this carries little weight.
17. The Council have not raised concerns in relation to highway safety, and the proposed development would be within walking distance of several services and facilities, in accordance with policy S10 of the LP.
18. The Council have also not identified any harm in relation to living conditions, and I see no reason to consider otherwise. Though this would accord with criterion A.viii

of policy ENV10 of the LP2, I have found conflict with this policy in respect of character and appearance. I have also not been directed to how the proposal would accord with policy S10 of the LP in relation to living conditions. Furthermore, the absence of harm in this matter is a neutral factor in the determination of the appeal.

19. The Council has an Emerging Local Plan¹, however due to its stage of progress it may be subject to change, therefore it only attracts limited weight. Policy R3 of the Emerging Local Plan provides support for development located immediately adjoining the confines of Other Villages, including Great Brington. Nevertheless, the design criteria forming criterion C of policy R3 of the Emerging Local Plan remains largely consistent with that of policy RA3 of the LP, to which I have identified conflict with. It follows that I also find that the proposed development would also conflict with Policy R3 of the Emerging Local Plan in this regard.
20. My attention has been drawn to a number of applications², some of which were appealed, within the area. I have however not been provided with sufficient details, including the context of these sites and the circumstances at the time of their approval to assess whether these other developments are directly comparable to that before me now. For the avoidance of doubt, I have determined the appeal on its own merits.

Planning Balance

21. The proposal would harm the character and appearance of the area and would undermine the Council's spatial strategy. The conflict I have identified with policies ENV10, RA3 and RA6 of the LP2, as well as R1 of the LP, results in conflict with the development plan read as a whole.
22. Policy S3 of the Framework applies a presumption in favour of sustainable development. For development inside and outside settlements, this means that policy S4 and S5 of the Framework should be applied respectively. For the reasons set out above, the appeal site is not within the settlement and therefore policy S4 does not apply.
23. Policy S5 of the Framework states certain forms of development should be approved outside of settlements unless the benefits of doing so would be substantially outweighed by any adverse effects. This includes under criterion (j) where the development would address an evidenced unmet need, such as where the local planning authority cannot demonstrate a five-year supply of deliverable housing sites. It is agreed that the Council does not have a 5-year housing land supply. The site is physically well related to Great Brington, and I have not been provided with any evidence to suggest local infrastructure cannot accommodate one further dwelling, meeting the criteria (j)(i) and (j)(ii).
24. The contribution of one additional dwelling to the mix and supply of housing, even if secured for self-build, would be limited. The development would also generate economic benefits through the construction phase of the development and through future occupiers' use of services and facilities within the area, though due to the scale of the development these would be modest. There would also be limited

¹ West Northamptonshire Local Plan - 2043

² WND/2022/0930, 2025/5267/S73, DA/2015/0534, DA/2018/0282, DA/2020/0735

biodiversity benefits through the addition of boxes and housing for various species, and the building would provide passive surveillance of Kimbell's field.

25. The Framework outlines circumstances in which the benefits of approving development proposals are likely to be substantially outweighed by the adverse effects. This includes situations where the development proposal would fail to comply with one of the national decision-making policies which state that development proposals should be refused in specific circumstances.
26. Policy DP3 of the Framework states development proposals should be refused if, without clear justification, they do not respond to their context, including the character and features of the site and their setting, so that they integrate with and enhance their surroundings; such as through the arrangement of development plots and buildings. As set out above, I have found significant harm to the character and appearance of the area, and I give this harm significant weight. Even taken together, I find the benefits of approving the development proposal would be substantially outweighed by the adverse effects. As such, the presumption in favour of sustainable development does not apply.

Conclusion

27. The proposal conflicts with the development plan and the material considerations do not indicate that the appeal should be decided other than in accordance with it. Therefore, the appeal should be dismissed.

D Harris-Watkins

INSPECTOR